

HEADNOTE

“1. The scope of application of Art. 60 UPCA is not limited to technical documentation. It may also encompass evidence of alleged acts of infringement contained in promotional and commercial documentation.

2. Art. 60 UPCA does not confer on the Court the power to allow a bailiff or expert to question the defendant's personnel on technical details relating to the defendant's products or production processes. Even if, in a specific case, obtaining statements from the defendant's personnel were necessary for preserving evidence, this would have to take place under the Court's control (cf., in the context of evidence taking, Art. 53 UPCA). Such questioning must therefore not be conducted by a bailiff or expert in the context of a description within the meaning of Art. 60(2) UPCA, or as part of an inspection under Art. 60(3) UPCA. In contrast, under Art. 60 UPCA, the Court may order a defendant to require its personnel to provide practical information necessary for the execution of measures for the preservation of evidence or the inspection of premises, such as passwords necessary to access digital data (cf. R. 196.1(d) RoP).

3. Where the preservation of evidence is necessary for the applicant to bring an infringement action, the applicant's interest in the preservation of evidence, as a general rule, prevails over the interests of the defendant, even if the defendant believes it can defend itself against the allegation of infringement on the basis of a prior use right within the meaning of Art. 28 UPCA. The proper procedure for determining the alleged prior use rights is the infringement action that the applicant intends to bring. The purpose of measures for the preservation of evidence is merely to ensure that all relevant evidence is available for the infringement proceedings. Only where it is clear, on the basis of a summary examination, that the infringement action has no prospect of succeeding in light of the alleged prior use right must the application for preserving evidence be dismissed.”

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Infringement action

PATENT
EP 3 289 139

tissue paper comprising pulp fibers
originating from Miscanthus

KEYWORDS

Appeal

measures for the preservation of evidence ...

questioning of personnel

prior use right

Article 60 Order to preserve evidence and to inspect premises

SUMMARY

The Court of Appeal Luxembourg ruled on an infringement action. The patent at issue relates to tissue paper comprising pulp fibers originating from Miscanthus. According to the headnotes of the decision, Article 60 of the UPCA permits courts to order evidence preservation measures based on a broad range of documentation, including promotional and commercial materials that may contain evidence of infringement. The Court lacks authority to allow bailiffs or experts to directly question the defendant's personnel about technical details during evidence preservation procedures, although the defendant may be ordered to facilitate access to practical information such as passwords that are genuinely necessary for executing these measures. Where evidence preservation is necessary to support an infringement claim, the applicant's interest in securing that evidence generally takes precedence over the defendant's competing interests, even when prior use rights are asserted, and dismissal of the preservation application is warranted only when a summary examination clearly demonstrates the infringement action cannot succeed on those grounds.